

Shri. Basavaraddi Devaraddi ... vs Smt. Padmavati W/O Basavaraddi ... on 26 September, 2023

Author: S.R. Krishna Kumar

Bench: S.R. Krishna Kumar

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NC: 2023:KHC-D:11340-DB
MFA No. 103253 of 2022

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH
DATED THIS THE 26TH DAY OF SEPTEMBER, 2023
PRESENT
THE HON'BLE MR JUSTICE S.R. KRISHNA KUMAR
AND
THE HON'BLE MR JUSTICE G BASAVARAJA
MISCELLANEOUS FIRST APPEAL NO. 103253 OF 2022 (MC)

BETWEEN:
SHRI. BASAVARADDI
DEVARADDI KILABANNAVAR,
AGE: 65 YEARS,
OCC: RET. GOVT. SERVANT,
R/O: BILLARAWAD,
TQ: NAVALAGUND,
DISTRICT: DHARWAD-582208.

... APPELLANT

(BY SRI. R.K.KULKARNI, ADVOCATE)

AND:
SMT. PADMAVATI
W/O. BASAVARADDI KILABANNAVAR,
AGE: 51 YEARS,
OCC: HOUSE HOLD WIFE,

KM
SOMASHEKAR
HIGH COURT OF
KARNATAKA
DHARWAD
BENCH
2023.10.04
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R/O: KALAHAL, TQ: RAMDURG,
DISTRICT: BELAGAVI-591123.

... RESPONDENT

(BY SRI.SHIVARAJ S.BALLOLI, ADVOCATE)

THIS MFA IS FILED U/S.28 OF THE HINDU MARRIAGE ACT,

1955, PRAYING TO CALL FOR THE RECORDS AND BE PLEASED TO SET ASIDE IMPUGNED JUDGMENT AND DECREE DATED 09.09.2022, PASSED IN MATRIMONIAL CASE NO.17/2015 BY THE SENIOR CIVIL JUDGE, RAMDURG, BY ALLOWING THIS APPEAL BY GRANTING THE DECREE OF DIVORCE BY DISSOLVING THE MARRIAGE OF THE APPELLANT WITH THE RESPONDENT SOLEMNIZED ON 26.06.1985 IN THE INTEREST OF JUSTICE AND EQUITY.

THIS APPEAL COMING ON FOR ADMISSION, THIS DAY, S.R.KRISHNA KUMAR, J., DELIVERED THE FOLLOWING:

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JUDGMENT

This appeal by the appellant-husband is directed against the impugned judgment and decree dated 09.09.2022 passed in M.C. No.17/2015 by the Senior Civil Judge, Ramdurg, whereby the said petition filed by him seeking a decree for divorce to dissolve his marriage with the respondent-wife solemnized on 26.06.1985 was disposed of by the Trial Court by granting decree of judicial separation while declining to grant the decree for divorce.

2. Today, both side have filed a Compromise Petition under Order XXIII Rule 3 of the Code of Civil Procedure, 1908, which reads as under:

"COMPROMISE PETITION FILED UNDER ORDER 23 RULE 3 OF C.P.C.

Herein the compromise petition filed by the Appellant and Respondent is as under.

1. That the Appellant had filed the case against the Respondent seeking the dissolution of his NC: 2023:KHC-D:11340-DB marriage with the Respondent which was conducted on 26.06.1985, under section 13(1) (ib) of the Hindu Marriage Act 1955 on file of the Learned Senior Civil Judge Ramdurg at Ramdurg.

2. That the Learned Senior Civil Judge Ramdurg at Ramdurg was pleased to dispose of the case by the order dated 09.09.2022 and thereby has ordered as under;

ORDER " The petition filed by the petitioner under section 13 (1) (ib) of the Hindu Marriage Act 1955 seeking the relief of dissolution of marriage is disposed off in the following manner.

The petitioner and the respondent are judicially separated for three years. After completion of such period, the parties can move a petition for restitution of conjugal rights or divorce depending upon the circumstance prevail at the time.

The parties are to bear their own costs.

Office is to draw a decree accordingly.

Office is to furnish the free copy of decree to the parties.

(Dictated to the stenographer directly on computer, typed by him, corrected and them pronounced by me in the open court on this 9th day of September 2022)
Sd/-09.09.2022 (Hanumanth G.H.) Senior Civil Judge, Ramdurg"

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3. That being aggrieved by the said order the Appellant has filed the top noted appeal. That after the notice in the top noted case to the Respondent, the elders of the both the parties have tried to rejoin the Appellant and Respondent. But as there was no chance of reunion the parties have decided to go for divorce as they are already living separately for more than 25 years, on the following terms;

4. (a) That the Appellant has to pay an amount of Rs.4,00,000/- (Rupees four lakhas only) to the Respondent as the permanent alimony.

(b) That the Appellant has paid the said amount to the Respondent through the D.D. drawn at State Bank of India Main Branch Dharwad in favour of the Respondent in No. 991320 dated:

25.09.2023,

(c) That the Respondent has agreed to receive the said amount of Rs.4,00,000/- (Rupees four lakhas only) as her permanent life alimony.

(d) That the Respondent further agrees that she has no claim what so ever over the properties of the Appellant and also she has no further claim against the Appellant in any manner.

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(e) That the Respondent has agreed to withdraw her all cases against the Appellant pending before the Civil Judge and JMFC at Ramdurg which filed for the recovery of maintainance filed under Section 125 of the Criminal Procedure Code.

(f) That it also agreed that the parties are to bear their own costs.

In the above terms the Appellant and Respondent prays this Hon'ble Court to draw the decree of the divorce by dissolving the marriage performed on 26.06.1985 between the Appellant and the Respondent."

3. As can be seen from the aforesaid Joint Compromise Petition, the appellant-husband has agreed to pay a sum of Rs.4,00,000/-, by way of a Demand Draft No.991320, dated 25.09.2023 drawn on State Bank of India, to the respondent-wife towards permanent alimony in full and final settlement of her claim against the appellant-husband. The said Demand Draft is handed over to the respondent-wife by the appellant-husband, and the respondent-wife acknowledges receipt of the same. Parties NC: 2023:KHC-D:11340-DB have signed the Compromise Memo along with their respective counsel who have identified them. The respondent-wife also undertakes to withdraw all criminal proceedings initiated against the appellant-husband before the Court of Civil Judge and JMFC, Ramdurg. The appellant and respondent submit that they have executed the Compromise Petition out of their own free will and volition and without there being any coercion or undue influence.

4. Upon perusal of the material on record including the Compromise Petition, we are of the view that the same is lawful and the present appeal deserves to be disposed of in terms of the Compromise Petition. In the result, we pass the following:

ORDER

- i) The appeal is hereby disposed of in terms of the compromise petition.
- ii) The impugned judgment and decree, dated 09.09.2022, passed in M.C.No.17/2015 by the Trial Court is hereby modified in terms of the Compromise Petition. The marriage NC: 2023:KHC-D:11340-DB between the parties solemnized on 26.06.1985 stands dissolved by decree for divorce by mutual consent.
- iii) Respondent-wife is directed to withdraw all pending criminal cases referred to in the compromise petition.
- iv) The compromise petition is directed to be part and parcel of the decree.

Registry to draw the decree accordingly.

Sd JUDGE Sd JUDGE KMS